SUBCHAPTER IV.—ALIEN VETERANS OF WORLD WAR I

§ 241. "Alien veteran" defined; definitions of sections 203–205 and 224 of this title adopted.

(a) As used in sections 241–246 and 392a of this title, the term "alien veteran" means an individual, a member of the military or naval forces of the United States at any time after April 5, 1917, and before November 12, 1918, who is now an alien not ineligible to citizenship; but does not include (1) any individual at any time during such period or thereafter separated from such forces under other than honorable conditions, (2) any conscientious objector who performed no military duty whatever or refused to wear the uniform, or (3) any alien at any time during such period or thereafter discharged from the military or naval forces on account of his alienage.

(b) Terms defined in sections 203, 204, 205 and 224 of this title shall, when used in sections 241–246 and 392a of this title, have the meaning assigned to such terms in said sections. (May 26, 1926, ch. 398, § 1, 44 Stat. 654.)

REFERENCES IN TEXT

Section 392a of this title, referred to in subsec. (a), is now set out in note under section 724 of this title.

§ 242. Alien veteran as nonquota immigrant; head tax or fees; grounds for exclusion.

An alien veteran shall for the purposes of subchapter III of this chapter be considered as a nonquota immigrant, but shall be subject to all the other provisions of said sections and of the immigration laws, except that—

(a) He shall not be subject to the head tax imposed by section 132 of this title.

(b) He shall not be required to pay any fee under section 202 or section 207 of this title.

(c) If otherwise admissible, he shall not be excluded under section 136 of this title, unless excluded under the provisions of that section relating to—

(1) Persons afflicted with a loathsome or dangerous contagious disease, except tuberculosis in any form.

(2) Polygamy.

(3) Prostitutes, procurers, or other like immoral persons.

(4) Contract laborers.

(5) Persons previously deported.

(6) Persons convicted of crime. (May 26, 1926, ch. 398, § 2, 44 Stat. 654.)

REFERENCES IN TEXT

In the original "subchapter III of this chapter" reads "the Immigration Act of 1924," meaning act May 26, 1924, ch. 190, 43 Stat. 153. For distribution of said act in this Code, see note under section 201 of this title.

§ 243. Status of child or spouse of "alien veteran."

The unmarried child under eighteen years of age, the wife, or the husband, of an alien veteran shall, for the purposes of subchapter III of this chapter, be considered as a nonquota immigrant when accompanying or following within six months to join him, but shall be subject to all the other provisions of that subchapter and of the immigration laws. (May 26, 1926, ch. 398, § 3, 44 Stat. 655.)

REFERENCES IN TEXT

In the original "subchapter III of this chapter" and "that subchapter" reads "the Immigration Act of 1924," and "that Act," respectively, meaning act May 26, 1924, ch. 190, 43 Stat. 153. For distribution of said act in this code, see note under section 201 of this title.

§ 244. Immigration visa; issuance within one year.

The provisions of sections 241–243 of this title shall not apply to any alien unless the immigration visa is issued to him before the expiration of one year after May 26, 1926. (May 26, 1926, ch. 398, § 4, 44 Stat. 655.)

§ 245. Deportation as public charge; prohibition.

An alien veteran admitted to the United States under sections 241–246 and 392a of this title shall not be subject to deportation on the ground that he has become a public charge. (May 26, 1926, ch. 398, § 5, 44 Stat. 655.)

REFERENCES IN TEXT

Section 392a of this title, referred to in this section, is now set out in note under section 724 of this title.

§ 246. Person bringing admissible alien veteran to port not subject to fine.

Nothing in the immigration laws shall be construed as subjecting any person to a fine for bringing to a port of the United States an alien veteran who is admissible under the terms of sections 241–246 and 392a of this title, even though such alien would be subject to exclusion if said sections had not been enacted. (May 26, 1926, ch. 398, § 6, 44 Stat. 655.)

REFERENCES IN TEXT

Section 392a of this title, referred to in this section, is now set out in note under section 724 of this title.

Chapter 7.—EXCLUSION OF CHINESE

Sec.
261. Control of exclusion of Chinese.
262–297. Repealed.
298. Bertillon system of identification.
299. Repealed.

§ 261. Control of exclusion of Chinese.

CODIFICATION

Section, acts Feb. 14, 1903, ch. 552, § 7, 32 Stat. 828; Mar. 4, 1913, ch. 141, § 3, 37 Stat. 737; Ex. Ord. No. 6166, § 14, June 10, 1933; 1940 Reorg. Plan No. V, eff. June 14, 1940, 5 F. R. 2423, 54 Stat. 1238, conferred upon the Attorney General the authority, power, and jurisdiction by virtue of any law relating to the exclusion from and residence within the United States, its Territories and the District of Columbia, of Chinese and persons of Chinese descent, and vested in the collectors of customs and collectors of internal revenue, under control of the Commissioner of Immigration and Naturalization, as the Attorney General might designate therefor, the authority, power, and jurisdiction in relation to such exclusion previously vested in such officers. It is now obsolete in view of the repeal, by act Dec. 17, 1943, ch. 344, § 1, 57 Stat. 600, of sections 262–297, 299 of this title.

§§ 262–297. Repealed. Dec. 17, 1943, ch. 344, § 1, 57 Stat. 600.

Sections, acts May 6, 1882, ch. 126, §§ 1, 3, 6–13, 15, 16, 22 Stat. 59–61; July 5, 1884, ch. 220, 23 Stat. 115–118; Sept. 13, 1388, ch. 1015, §§ 5–11, 13, 14, 25 Stat. 477–479; Oct. 1, 1888, ch. 1064, §§ 1, 2, 25 Stat. 504; May 5, 1892, ch. 60, §§ 1–3, 5–8, 27 Stat. 25, 26; Nov. 3, 1893, ch. 14, §§ 1, 2, 28 Stat. 7, 8; July 7, 1898, No. 55, § 1 (part), 30 Stat. 751; Apr. 30, 1900, ch. 339, § 101, 31 Stat. 161; June 6, 1900, ch. 791, § 1 (part), 31 Stat. 611; Mar. 8, 1901,

ch. 845, §§ 1–3, 31 Stat. 1093; Apr. 29, 1902, ch. 641, §§ 1, 2, 4, 32 Stat. 176, 177; Apr. 27, 1904, ch. 1630, § 5, 33 Stat. 428; Aug. 24, 1912, ch. 355, § 1 (part), 37 Stat. 476, related to the exclusion of Chinese and persons of Chinese descent from the United States or its Territories, and to various matters appertaining thereto, including the requirement of certificates of permission and identity by those who might be entitled to entry, exemptions, duties of masters of vessels and Federal officers, arrest, hearing and removal of Chinese unlawfully within the United States or its Territories, habeas corpus, and forfeitures and penalties for violation of the exclusion laws.

Acts Feb. 14, 1903, ch. 552, § 7, 32 Stat. 828; Res. Apr. 28, 1904, No. 34, 33 Stat. 591; Mar. 4, 1913, ch. 141, § 3, 37 Stat. 737; Ex. Ord. No. 6166, § 14, June 10, 1933, and 1940 Reorg. Plan No. V, eff. June 14, 1940, 5 F. R. 2423, 54 Stat. 1238, formerly cited in credits to many of these sections, were not specifically repealed by act Dec. 17, 1943, ch. 344, § 1, 57 Stat. 600, however, each related to departmental changes of administrative functions and depended for their efficacy upon the acts repealed by said act Dec. 17, 1943.

Act. Aug. 29, 1916, ch. 416, § 12, 39 Stat. 548, formerly cited in credit to section 297, was not specifically repealed by act Dec. 17, 1943, cited above; however it merely affected the original of the words "Philippine Legislature."

CROSS REFERENCES

Chinese immigration quotas, see note under section 211 of this title.

§ 298. Bertillon system of identification.

CODIFICATION

Section, acts Mar. 17, 1894, Art. III, 28 Stat. 1211; Apr. 28, 1904, ch. 1762, § 1, 33 Stat. 478, provided for the Bertillon system of identification at the various ports of entry, to prevent unlawful entry of Chinese into the United States. It is obsolete in view of the repeal of sections 262–297 of this title by act Dec. 17, 1943, ch. 344, § 1, 57 Stat. 600. For some years prior to such act, no moneys had been appropriated to prevent unlawful entry of Chinese, referred to in this section.

§ 299. Repealed. Dec. 17, 1943, ch. 344, § 1, 57 Stat. 600.

Section, act June 23, 1913, ch. 3, § 1, 38 Stat. 65, provided for delivery by the marshal, of all Chinese persons ordered deported under judicial writs, into the custody of any officer designated for that purpose, for conveyance to the frontier or seaboard for deportation.

1940 Reorg. Plan No. V, eff. June 14, 1940, 5 F. R. 2423, 54 Stat. 1238, formerly cited in credit to this section, was not specifically repealed by act Dec. 17, 1943, ch. 344, § 1, 57 Stat. 600; however, it merely affected original of words "Attorney General."

Chapter 8.—THE COOLY TRADE

Sec.
331. Cooly trade prohibited.
332. Same; forfeiture of vessels.
333. Building vessels to engage in cooly trade; penalty.
334. Punishment for engaging in cooly trade.
335. Voluntary emigration of "coolies" excepted.
336. Same; inquiry and certificate by consular officer.
337. Examination of vessels.
338. Involuntary transportation of Chinese, Japanese, etc., for purpose of holding to service; penalty; contracts void.
339. Contracting to supply cooly labor.

§ 331. Cooly trade prohibited.

No citizen of the United States, or foreigner coming into or residing within the same, shall, for himself or for any other person, either as master, factor, owner, or otherwise, build, equip, load, or otherwise prepare, any vessel, registered, enrolled, or licensed, in the United States, for the purpose of procuring from any port or place the subjects of China, Japan, or of any other oriental country, known as "coolies", to be transported to any foreign port, or place, to be disposed of, or sold, or transferred, for any time, as servants or apprentices, or to be held to service or labor. (R. S. § 2158.)

DERIVATION

Acts Feb. 19, 1862, ch. 27, § 1, 12 Stat. 340; Feb. 9, 1869, ch. 24, 15 Stat. 269.

§ 332. Same; forfeiture of vessels.

If any vessel, belonging in whole or in part to a citizen of the United States, and registered, enrolled, or otherwise licensed therein, be employed in the "cooly trade", so called, contrary to the provisions of section 331 of this title, such vessel, her tackle, apparel, furniture, and other appurtenances, shall be forfeited to the United States, and shall be liable to be seized, prosecuted, and condemned in any of the district courts of the United States for the district where the vessel may be found, seized, or carried. (R. S. § 2159; Mar. 3, 1911, ch. 231, § 291, 36 Stat. 1167.)

DERIVATION

Act Feb. 19, 1862, ch. 27, § 1, 12 Stat. 340.

§ 333. Building vessels to engage in cooly trade; penalty.

Every person who so builds, fits out, equips, loads, or otherwise prepares, or who sends to sea, or navigates, as owner, master, factor, agent, or otherwise, any vessel, belonging in whole or in part to a citizen of the United States, or registered, enrolled, or licensed within the same, knowing or intending that such vessel is to be or may be employed in that trade, contrary to the provisions of section 331 of this title, shall be liable to a fine not exceeding $2,000, and be imprisoned not exceeding one year. (R. S. § 2160.)

DERIVATION

Act Feb. 19, 1862, ch. 27, § 2, 12 Stat. 340.

§ 334. Punishment for engaging in cooly trade.

Every citizen of the United States who, contrary to the provisions of section 331 of this title, takes on board of any vessel, or receives or transports any such subjects as are described in that section, for the purpose of disposing of them in any way as therein prohibited, shall be liable to a fine not exceeding $2,000 and be imprisoned not exceeding one year. (R. S. § 2161.)

DERIVATION

Act Feb. 19, 1862, ch. 27, § 3, 12 Stat. 340.

§ 335. Voluntary emigration of "coolies" excepted.

Nothing contained in sections 135, 331–334, and 337 of this title shall be deemed to apply to any voluntary emigration of the subjects specified in section 331 of this title, or to any vessel carrying such person as passenger on board the same, but a certificate shall be prepared and signed by the consul or consular agent of the United States residing at the port from which such vessel may take her departure, containing the name of such person, and setting forth the fact of his voluntary emigration from such port, which certificate shall be given to the master of such vessel; and the same shall not be given until such consul or consular agent is first personally satisfied by evidence of the truth of the facts therein contained. (R. S. § 2162.)